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Case Number: 21CHCV00467 Hearing Date: July 30, 2026 Dept: F43

Dept. F43

Hearing Date: 07-30-26

Case # 21CHCV00467, Silvas v. Central
Valley Occupational Medical Group, Inc., et al.

Trial Date: N/A

MOTION TO STRIKE OR
TAX COSTS

MOVING PARTY: Plaintiff Vanessa Silvas

RESPONDING PARTIES: Defendants Central Valley Occupational Medical
Group, Inc.; ProHealth Professional Services, LLC; Regency Surgery Center;
Pro-Health Valley Occupational Medical Group, Inc.; and Sean Younai

RELIEF REQUESTED

Order striking defendants' memorandum of costs
in its entirety. In the alternative, order
striking expert witness fees, trial binder photocopies, transcript fees,
duplicate video processing fee for Plaintiff's deposition, and registered
process-server charges.

RULING: Motion is granted in part and denied in
part. The court strikes \$4,350 in

transcript fees and \$105 in duplicate video fees from Defendants' memorandum of costs. Defendants are entitled to \$113,621.20 in costs.

SUMMARY OF ACTION

On June 22, 2021, plaintiff Vanessa Silvas (Plaintiff) filed this employment action against defendants ProHealth Professional Services, LLC, Regency Surgery Center, Central Valley Occupational Medical Group, Inc., Pro-Health Valley Occupational Medical Group, Inc., and Sean Younai (Defendants). The operative Third Amended Complaint asserted twelve causes of action for violations of the Labor Code, violations of the Fair Employment and Housing Act (FEHA), wrongful termination in violation of public policy, and intentional infliction of emotional distress.

On December 1, 2025, Defendants moved for summary judgment on the Third Amended Complaint. The court granted the motion based on Plaintiff's lack of standing. Judgment was entered for Defendants on April 23, 2026, with Defendants being declared the prevailing parties in this action pursuant to Code of Civil Procedure section 1032. (4/23/26 Judgment at p. 2:24-25.) Notice of the entry of judgment was mailed to Plaintiff on April 29, 2026. (4/29/26 Notice of Entry of Judgment or Order at p. 5.)

On May 14, 2026, Defendants filed a joint Memorandum of Costs, seeking \$118,076.20 in costs.

On June 2, 2026, Plaintiff filed a motion to strike or tax the costs. Defendants filed late opposition papers on Monday, July 20, 2026, which they claim was caused by technical issues with the court's e-filing system.[1] Plaintiff replied on July 21, 2026.

ANALYSIS

A. Motion to Strike or Tax Costs

A prevailing party is entitled to recover costs, as a matter of right, in any action or proceeding absent a statute expressly noting

otherwise. (Civ. Proc. Code, § 1032, subd. (b).) Unless a statute provides otherwise, a court has no discretion to deny costs to a prevailing party. (Nelson v. Anderson, 1999) 72 Cal.App.4th 111, 129.) A prevailing party is (i) a party that receives a net monetary recovery, (ii) a defendant who obtains a dismissal in its favor (iii) a defendant, when neither the plaintiff nor defendant attained any relief and (iv) a defendant, where the plaintiff(s) obtains no recovery from the defendant. (Civ. Proc. Code, § 1032, subd. (a)(4).) "If any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034." (Id.) Section 1033 sets forth the allowable costs and notes that allowable costs must be reasonably necessary to "the conduct of litigation."

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A party asserting it is the prevailing party must file a memorandum of costs "within 15 days of notice of entry of judgment or dismissal by the clerk or dismissal by the clerk under Code of Civil Procedure Section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700.)

A party opposing those costs may file a motion to strike to challenge all costs or a motion to tax costs to challenge specific costs listed in the prevailing party's memorandum of costs. The opposing party bears the burden of demonstrating why certain items should not be permitted and must state specific facts to support the motion. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 129; Rojas v. HSBC Card Services (2023) 93 Cal.App.5th 860, 896.) The motion must be filed and served within 15 days after service of the cost memorandum. (Cal. Rules of Court, rule 3.1700.)

The court must determine whether sections 1032 and 1033.5

expressly allow the prevailing party to recover the requested cost. (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 71; Code Civ. Proc., § 1033.5, subd. (a).) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. . . . (3) Allowable costs shall be reasonable in amount." (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)

Defendants timely filed and electronically served their memorandum of costs on May 14, 2026, and Plaintiff timely filed and served her motion to strike or tax costs within 15 days, plus two for electronic service.

Defendants ask the court to (1) strike all costs based on a theory of judicial estoppel, or (2) strike and tax various costs: \$77,942.50 in Claimed Section 998 Expert Fees, \$4,534.95 for trial binder photocopies, \$4,350.00 for transcript fees, \$3,020.41 in registered service of process fees for Cathy Graf and Thomas Fera, and \$183 for a duplicate video processing fee.

1.

Plaintiff's judicial estoppel argument lacks merit.

Plaintiff contends judicial estoppel bars Defendants' costs request because Defendants have consistently argued that Plaintiff is a non-party in this action or not the real party in interest who could not bring or maintain her claims. (Motion at p. 10:2-14.)

"Under California law, judicial estoppel applies when '(1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.'" (Daar & Newman v. VRL Int'l (2005) 129 Cal.App.4th 482, 491 [quoting Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 183].)

Plaintiff's argument is one of inconsistent positions: Defendants cannot simultaneously argue Plaintiff lacked standing and then seek costs against Plaintiff as a

“real party” in interest.

Here, Defendants' positions are not inconsistent. First, Defendants have never argued Plaintiff is not a party to this action.

Defendants have consistently argued Plaintiff is a party to this action but lacks the standing to bring the substantive claims in this action. Considering Plaintiff filed this action and brought Defendants into this litigation, she is a party to the action. Because Plaintiff lacked standing, she did not prevail on her claims. As such,

Defendants separately seek costs from Plaintiff as the named party who filed this action and did not prevail on her claims.

These are compatible positions:

the standing defect defeats the merits of Plaintiff's causes of action but does not eliminate the litigation costs incurred in defending this action. Furthermore, the costs statute operates independently of the merits of the underlying claims basing entitlement to costs on the identity of the prevailing party.

Although there is recent case law which holds that costs cannot be recovered against a true non-party who never participated in litigation, that principle does not apply where the Plaintiff herself initiated an action, named herself as a party, and actively litigated the action to summary judgment. (See *Rose v. Hobby Lobby Stores, Inc.* (2025) 111 Cal.App.5th 162, 172-176 [stating PAGA costs not recoverable against the Labor and Workforce Development Agency where the agency never became a party to the litigation].)

Because Defendants obtained a favorable summary judgment ruling and Plaintiff has recovered no relief, Defendant qualifies as the prevailing party and their right to costs is mandatory rather than discretionary. (Cussler v. Crusader Entertainment, LLC (2012) 212 Cal.App.4th 356, 364, 371-372.)

Plaintiff's argument lacks merit, and Plaintiff cites no case law which supports denying Defendants' mandatory right to costs. Absent a good faith basis for modifying or extending an existing law, litigants are generally prohibited from asserting a position in litigation without authority. (See, e.g., *In re Estate of Randall* (1924) 194 Cal. 725, 728-729 [“Contentions supported neither by argument nor by citation of authority are deemed to be without foundation, and to have been abandoned.”]; see also *Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-572 [“When a point is

asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'"]; *Atchley v. City of Fresno* (1984) 151 Cal. App. 3d 635, 647 ["Where a point is merely asserted by appellant's counsel without any argument of or authority for the proposition, it is deemed to be without foundation and requires no discussion by the reviewing court."].)

Therefore, the court denies Plaintiff's motion to the extent it is based on "judicial estoppel."

2.

Section 998 Expert Fees:

\$77,942.50

Next, Plaintiff asks the court to strike \$77,942.50 in claimed Section 998 expert fees. According to Plaintiff, Defendants have failed to identify which of the two Section 998 offers triggers the entitlement to costs.

Furthermore, the offers are invalid because they consist of a single lump sum joint offer from all five defendants without apportioning the lump sum amongst each defendant. California courts have consistently held that such a joint section 998 offer is invalid and cannot trigger section 998 cost-shifting.

In opposition, Defendants present copies of both Section 998 Offers and receipts for the expert witness fees. According to Defendants, the offers were presented from all defendants jointly because Plaintiff pursued all five defendants collectively without differentiation, under the joint unity of interest doctrine. Furthermore, Defendants' cited case law is distinguishable because it pertains to joint plaintiffs with a joint unity of interest where an unapportioned offer was made asserting a single community property interest. A section 998 offer is valid if it is sufficiently certain to permit the offeree to realistically evaluate the litigation.

As stated above, Defendants are the prevailing parties because neither Defendants nor Plaintiff obtained any relief in this matter. (Code Civ. Proc., § 1032, subd. (a)(4).) However, Code of Civil

Procedure section 998 augments the general cost-recovery framework of section 1032 by shifting post-offer costs when a plaintiff rejects a defendant's offer to compromise and then fails to obtain a more favorable judgment or award. (Code Civ. Proc., § 998, subd. (a).)

"Not less than 10 days prior to commencement of trial . . .

. . . any party may serve an offer in writing upon any other party to the action to allow judgment to be taken or an award to be entered in accordance with the terms and conditions stated at that time.

The written offer shall include a statement of the offer, containing the terms and conditions of the judgment or award, and a provision that allows the accepting party to indicate acceptance of the offer by signing a statement that the offer is accepted. Any acceptance of the offer, whether made on the document containing the offer or on a separate document of acceptance, shall be in writing and shall be signed by counsel for the accepting party or, if not represented by counsel, by the accepting party." (Code Civ. Proc., § 998, subd. (b).) "If the offer is not accepted prior to trial .

. . . or within 30 days after it is made, whichever occurs first, it shall be deemed withdrawn, and cannot be given in evidence upon the trial[.]" (Code Civ. Proc., § 998, subd. (a)(2).)

"If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant.

In determining whether the plaintiff obtains a more favorable judgment, the court or arbitrator shall exclude the postoffer costs." (Code Civ. Proc., § 998, subd. (c)(1)-(2)(A).)

Defendants served two Section 998 Offers to Compromise on Plaintiff prior to the court's summary judgment ruling and entry of judgment: October 5, 2022, offer for

\$85,000, and a March 3, 2023, offer for \$225,000. (Declaration of Brennan M. Hershey ¶ 7; Declaration of Freda Tjoarman ¶¶ 14-16, Exhs.

L, M.) Defendants appear to rely on the March 3, 2023, offer as the triggering offer.

Both offers were made jointly by all Defendants to Plaintiff as single, undivided lump sums as payment for all damages of any type or nature that Plaintiff could recover in this action, as well as statutory costs and reasonable attorneys' fees incurred as of the date of the offer. In exchange, Plaintiff was required to dismiss the matter with prejudice within 15 days of Defendants making payments.

The offers also advised Plaintiff "that failure to accept the offer may have adverse consequences should Plaintiff recover an amount less than this offer at the time of trial or arbitration, including a reduction in attorneys' fees and costs awarded to Plaintiff, an inability by Plaintiff to recover such costs, or an award of such costs against Plaintiff and in Defendants' favor. See California Code of Civil Procedure § 998; California Labor Code § 218.5."

Finally, both offers included provisions that allowed the accepting party to indicate acceptance of the offer by their attorney signing a signature block under the following text:

"Plaintiff hereby accepts this offer to compromise on the terms stated above." Plaintiff did not accept either offer. (Tjoarman Decl. ¶¶ 14-15.)

Thus, the offers appear on their face to be valid.

"A settlement offer made jointly by several defendants to a specific plaintiff may be sufficient to trigger section 998 penalties where the defendants are jointly and severally liable. However, in post-Proposition 51 cases, where each defendant is only jointly liable for the plaintiff's economic damages but severally liable for noneconomic damages in proportion to that defendant's degree of wrongdoing, the validity of such an offer is questionable." (Taing v. Johnson Scaffolding Co. (1992) 9 Cal.App.4th 579, 583-584, citations omitted.)

Here, both offers were jointly made by all Defendants. Plaintiff's Third Amended Complaint alleges "All defendants were responsible for the events and damages alleged herein, including on the following bases: (a) Defendants, committed the acts alleged; (b) at all relevant times, one or more of the Defendants was the agent or employee, and/or acted under the control or supervision, of one or more of the remaining defendants, and in committing the acts alleged, acted within the course and scope of such agency and employment and/or is or are otherwise liable for Plaintiff's damages; (c) at all relevant times, there

existed a unity of ownership and interest between or among two or more of the Defendants such that any individuality and separateness between or among those Defendants has ceased, and Defendants are the alter egos of one another." (TAC ¶ 4.) Plaintiff alleges all causes of action against each defendant (except the ninth, tenth, eleventh, and twelfth causes of action). And Plaintiff sought economic damages, equitable relief, and punitive damages from all Defendants. Although the offers were not apportioned between each defendant, Plaintiff's alter-ego allegations demonstrate Plaintiff's intent to hold all Defendants jointly and severally liable for all damages. Plaintiff contends the offerors are required to "prove a true unity of interest, and the burden rests on them" but fails to cite any case law which supports this contention. (Reply at p. 2:26-28.)

Thus, Plaintiff's failure to accept the March 3, 2023, offer triggers Section 998(c)(1) and the court in its discretion determines whether the \$77,942.50 expert fees are reasonable.

Defendants claim the \$77,942.50 in expert witness fees were incurred for their medical expert (Paul A. Barkopoulos, M.D., M.P.H.) who billed 108.66 hours at \$550.00 per hour (\$59,762.50) and their accounting expert (William Buckley) who billed 40.4 hours at \$450 per hour (\$18,180). (Tjoarman Decl. ¶ 13, Exh. G.) A review of the experts' invoices indicates all fees were incurred for work performed post-offer. (See id., Exh. G.)

After reviewing the attached invoices and seeing no substantive challenges to the invoices from Plaintiff, the court finds the expert witness fees were actually incurred and reasonably necessary to litigate this matter as to Plaintiff's injuries and claimed damages for Labor Code, FEHA violations, wrongful termination, and tortious conduct.

Therefore, the court denies Plaintiff's motion as to the \$77,942.50 in expert fees.

3. The court strikes \$4,350.00 in Transcript Fees and \$105 of the Duplicate Video fee.

Item 4: \$183 "Duplicate Video Processing" fee

Plaintiff moves to strike Item No. 4: Duplicate Video Processing Fee (\$183) because Section 1033.5 does not authorize recovery for a second or duplicate processing of a video recording already covered elsewhere

in the deposition invoice.

In opposition, Defendants contend section 1033.5(a)(3)(A) permits recovery for video recording of depositions, including “an original and one copy of those taken by the claimant.” The \$183.00 charge labeled “Duplicate Video Processing Fee” represents a legitimate charge associated with the video processing of Plaintiff’s deposition. The vendor label is a billing description, not a legal characterization, and it does not establish that the charge falls outside the scope of allowable deposition video costs. The deposition was necessary, the video recording was proper, and the processing charge was incurred in connection with it. Plaintiff presents no evidence that this specific charge lies outside the scope of section 1033.5(a)(3)(A). (Tjoarman Decl., Exh. Q.)

Allowable costs under Code of Civil Procedure section 1033.5, subdivision (a)(3)(A) include the “[t]aking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed.”

In reviewing the invoices attached to the Tjoarman declaration, the court finds that the \$105 of the \$183 duplicate video processing fee goes beyond the scope of allowed costs under Section 1033.5(a)(3)(A). (Tjoarman Decl., Exh. E at pp. 1-2, 7, Exh. Q.)

Therefore, the court strikes the \$105 video processing fee, reducing the \$183 deposition charge to \$78.

Item 5: Cathy Graf (\$1,902.01) and Thomas Fera (\$1,118.40) Registered Service of Process fees for Deposition Subpoenas

Plaintiff asserts the subpoena service of process fees for Cathy Graf and Thomas Fera are facially excessive and represent costs well beyond the Los Angeles County Sheriff’s fee for comparable personal service, and Defendants do not support the request with invoices or other documentation. (Hershey Decl. ¶ 6.)

In opposition, Defendants assert the \$1,902.01 and \$1,118.40 service charges were actually incurred to effect service on Plaintiff's treating therapist and healthcare provider in this action. Registered process-server fees are not statutorily capped at the Sheriff's rate, and courts have consistently held that registered process-server fees in excess of the Sheriff's fee may be recovered so long as they are reasonably incurred. (Tjoarman Decl. ¶ 20.)

Section 1033.5 specifically provides that when service is by a registered process server, "the recoverable cost is the amount actually incurred in effecting service, including, but not limited to, a stakeout or other means employed in locating the person to be served, unless those charges are successfully challenged by a party to the action." (Code Civ. Proc., § 1033.5, subd. (a)(4)(B).) The prevailing party claiming stakeout fees must provide adequate documentation to establish the necessity and reasonableness of the service costs. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 132-135.)

The court has reviewed the First Legal invoices for Ms. Graf's deposition subpoenas and Mr. Fera's deposition subpoenas and finds that Defendants actually incurred \$1,902.01 in service of process charges in attempting to serve deposition subpoenas on Ms. Graf and \$1,118.40 in service of process fees attempting to serve Mr. Fera. (See Tjoarman Decl., Exh. F at pp. 3-9, 11-12 [noting at least 10 service attempts for the deposition subpoenas].) Furthermore, Plaintiff cites no case law requiring the court to limit Defendants' service of process fees to the Los Angeles County Sheriff's fee schedule.

Therefore, the court denies Plaintiff's motion as to the registered service processor fees related to serving Cathy Graf and Thomas Fera.

Item 9: \$4,350.00 in
Transcript Fees,

Plaintiff asks the court to strike \$4,350 in "Court-ordered transcript" fees because the court never issued an order directing the parties to prepare or purchase transcripts from various proceedings. (Hershey Decl. ¶ 5.) Defendants cannot satisfy section 1033.5, subdivision (a)(9)(A) simply by affixing the label "court-ordered" to a self-serving cost memorandum. Section 1033.5(b)(5) (b)(5) expressly excludes non-court-ordered transcripts from allowable costs.

In opposition, Defendants assert Section 1033.5(a)(9)(A) allows the transcripts because they were obtained in the ordinary course of litigating this matter. (Tjoarman Decl.

¶¶ 10, 19, Exhs. H, O; Opposition at p.

12:23-24 [transcripts from four contested hearings on various motions].)

Pursuant to Section 1033.5(a)(9), allowable costs include

“Transcripts of court proceedings ordered by the court.” (Code Civ. Proc., § 1033.5, subd.

(a)(9).) “Transcripts of court

proceedings not ordered by the court,” are not allowable costs. (Code Civ. Proc., § 1033.5, subd. (b)(5).)

Although Defendants actually incurred the transcript

costs for contested proceedings, Defendants present no evidence or minute

orders indicating the court ever ordered the parties to provide transcripts.

Therefore, the court grants Plaintiff’s motion as to the

transcript fees and strikes \$4,350 in transcript fees.

Item 13: \$4,534.95 in

“Trial Binder” Photocopies

Plaintiff contends the court should strike \$4,534.95 for

“Photocopying/compilation of Trial Binders” because no jury actually received

the binders and preparation for a trial that does not occur is not necessary to

the conduct of litigation.

In opposition, Defendants contend the test is whether the

costs were “reasonably necessary to the conduct of the litigation” at the time

they were incurred, not whether, with the benefit of hindsight, the preparation

turned out to be unnecessary. Defendants

cite Section 1033.5(c) as a basis for the court to award the trial binder fees. (Tjoarman Decl. ¶ 18, Exh. N; Opposition at pp. 11:26-12:20.)

“Models, the enlargements

of exhibits and photocopies of exhibits, and the electronic presentation of

exhibits, including costs of rental equipment and electronic

formatting, may be allowed if they were reasonably helpful to aid the

trier of fact.” (Code Civ. Proc., §

1033.5, subd. (a)(13).) The threshold

requirement is whether the materials were actually used or presented during the proceedings. “To demonstrate that models, enlargements of exhibits, photocopies of exhibits, and electronic presentations were reasonably helpful to aid the trier of fact under Section 1033.5(a)(13), the prevailing party must show that these materials were actually presented to or used by the trier of fact during the proceedings. (Segal v. ASICS America Corp. (2022) 12 Cal.5th 651, 666-668.) To demonstrate reasonable helpfulness of trial exhibits presented through audiovisual equipment, the plaintiff can show that the counsel, witnesses, and the judge actually used paper exhibits and copies of the admitted exhibits went into the jury room. (Chaaban v. West Seal, Inc. (2012) 203 Cal.App.4th 49, 59; see also El Dorado Meat Co. v. Yosemite Meat & Locker Service, Inc. (2007) 150 Cal.App.4th 612, 615-616 [awarding \$2,250 in costs for projection equipment used to enlarge exhibits by projection].)

However, under Section 1033.5(c)(4), a trial court may “award costs incurred in preparing demonstratives and photocopies of trial exhibits, even though they were not ultimately used at trial, when such materials are reasonably necessary to the conduct of litigation and reasonable in amount.” (Segal, *supra*, 12 Cal.5th at p. 667; Code Civ. Proc., § 1033.5, subd. (c)(2)-(4).)

Pursuant to Section 1033.5(c), the court finds the binder costs were reasonably necessary to conduct litigation. In *Benach v. County of Los Angeles* (2007), the Court of Appeal upheld an award for exhibit photocopies and binders not used at trial, reasoning that “an experienced trial judge would recognize that it would be inequitable to deny as allowable costs exhibits any prudent counsel would prepare in advance of trial,” particularly where “nothing indicates [the party] could have anticipated that they would not be used.” (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 856.)

The court also finds the trial binder charges are reasonable in amount and notes the invoices for the trial binders date back to September and October of 2023, indicating Defendants were preparing for trial during one of the previously scheduled trial dates. (Tjoarman Decl., Exh. I.) Considering the timing of the filing of the summary judgment (December 1, 2025), the motion hearing (February 20, 2026), the

final trial date (March 23, 2026), and the court issuing its final summary judgment ruling on March 16, 2026, it was reasonably necessary for Defendants prepare trial binders and exhibits for trial.

Because issues underlying the judgment were highly contested, Defendants could not have known whether the court would have granted the motion in its entirety for them.

Plaintiff contends Defendants cannot seek discretionary relief under Section 1033.5(c)(4) because the memorandum costs lists the binders under Section 1033.5(a)(13).

However, Plaintiff cites no California case law that requires a memorandum of costs to cite specific statutory provisions in order to support a cost request.

Therefore, the court denies Plaintiff's motion as to the \$4,534.95 in "Trial Binder" Photocopies.

CONCLUSION and ORDER

Motion to strike costs is granted in part and denied in part.

The court strikes \$4,350 in transcript fees and \$105 in duplicate video fees from Defendants' memorandum of costs.

Defendants are entitled to \$113,621.20 in costs.

Defendants to give notice.

[1] Because Defendants timely served Plaintiff directly and Plaintiff claims no prejudice from the delayed filing, the court still considers the opposition and supporting papers.